

STATE OF NEW YORK

6834--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 14, 2025

Introduced by M. of A. MAGNARELLI, CLARK, BRONSON, MEEKS, LUNSFORD -- read once and referred to the Committee on Education -- recommitted to the Committee on Education in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the education law, in relation to transportation services for certain school districts

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 1 of section 3635 of the education law is
2 amended by adding a new paragraph h to read as follows:

3 h. Notwithstanding any other provision of law to the contrary, the
4 city school districts of the cities of Buffalo, Rochester, Syracuse and
5 Yonkers, pursuant to adoption of a resolution by the board of education
6 setting forth a plan, and approval of such plan by the commissioner, may
7 provide transportation services for children residing within the
8 district attending kindergarten through grade twelve who live one-half
9 mile or more from the school they legally attend if such transportation
10 is deemed necessary pursuant to a determination by the commissioner due
11 to safety concerns. Such transportation services shall be restricted to
12 transportation to and from children's homes or before or after-school
13 child care locations and, if offered, shall be provided for each student
14 up to a distance of fifteen miles. Transportation pursuant to this para-
15 graph shall be offered equally to all children in like circumstances
16 residing in the district. For the purpose of computing approved trans-
17 portation expenses for transportation aid, expenses for transportation
18 provided pursuant to this paragraph shall be included and subject to a
19 one hundred percent aid ratio. The school district shall provide a
20 report to the governor, the speaker of the assembly, the temporary pres-
21 ident of the senate and the commissioner on the results of the first
22 three years of the program, including the cost and benefit analysis of

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 increased or decreased costs for the school district and the state, and
2 the impact on student attendance and academic performance of the school
3 district, on or before September fifteenth, two thousand twenty-nine.

4 § 2. This act shall take effect immediately.